MERITS
FACILITY LTD
PROTECTING YOUR ASSETS

PENTAGON 1 · DIGITAL DRIVE · COTE D'OR TECHNOPOLE · EBÈNE

House Rules

Rights and obligations of co-owners and occupants

This booklet explains, in plain English, the rules that already apply to you under the Civil Code and the Règlement de Copropriété (RdC) of Pentagon 1. It creates no new obligations. Where you want the exact legal wording, the reference under each rule takes you to the source.

STATUS — STAGE 1 (DRAFT FOR APPROVAL)

Prepared by the Syndic under art. 3.2.3.2 II of the RdC, for approval by the General Meeting.

Once approved by ordinary decision of the General Meeting, these House Rules bind all co-owners and occupants with the same force as the RdC itself.

Breach of any rule in Part Two may attract a penalty of up to MUR 50,000 per breach (indexed annually on the Consumer Price Index), imposed by the Syndic after advice of the Conseil Syndical — RdC §2.1.5.

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Prepared by Merits Syndic — a syndic business of Merits Facility Ltd
Registered in the Pentagon 1 Document Register

BEFORE YOU START

How to use this booklet

This booklet is organised in five parts. Each part has its own colour — the same colour appears on the part's divider page and in the rule codes throughout, so you always know where you stand.



PART ONE — WHAT YOU ARE ENTITLED TO

Your rights as a co-owner or occupant — what the rules of the building protect for you. Neutral blue: information.

PART TWO — YOU CANNOT

Things you must not do. Breach may result in a penalty of up to MUR 50,000 per breach (RdC §2.1.5), removal of the item at your cost, or both.

PART THREE — YOU MAY, WITH AUTHORISATION FIRST

Things you may do — but only after written authorisation from the Syndic (or a General Meeting decision where stated). Ask first, act second.

PART FOUR — YOU MUST

Things the RdC and the Civil Code already require of you. These are compliance duties, most with a deadline or a document attached.

Owners: you remain responsible

These rules bind co-owners and occupants — tenants, staff and guests alike (RdC art. 3.2.3.2 II). If your tenant, employee or visitor breaches a rule, the breach is logged against your lot, and any penalty or remediation cost is charged to your personal account, never to common charges.

One-page compliance checklist

In a hurry? Part Five is the whole booklet on one page — every duty, every deadline, every place to hand in a document. It is the page to pin on your notice board.

I

What you are entitled to

The rules protect you too. These are your rights, as a co-owner or occupant of Pentagon 1 — each one already in force under the RdC or the Civil Code.

HR-R-01 Use your lot freely, for the purpose set out in the EDD (residential, professional or commercial, as designated for your lot).

Source: RdC §2.1.2

HR-R-02 Use the common parts freely for the enjoyment of your lot — provided you do not obstruct the rights of other co-owners.

Source: RdC §2.1.3.1

HR-R-03 Enjoy the peace and quiet of your lot: no occupant may cause abnormal disturbance, by day or by night.

Source: RdC §2.1.2.7

HR-R-04 Admit your own architects, contractors and workers to your lot, at your cost, to carry out and supervise works.

Source: RdC §2.1.2.8 (A)

HR-R-05 Insure your lot with a complementary policy if you consider the collective cover insufficient — you alone pay the premium and you alone receive the indemnity.

Source: RdC §4.2 (IV)

HR-R-06 Take part and vote in General Meetings; be informed of decisions concerning the co-ownership.

Source: Civil Code, arts. 664-77 et seq.

HR-R-07 Be heard: written complaints to the Syndic about order, tranquillity or non-observance of the RdC must be brought to the General Meeting.

Source: RdC §2.1.4 (4°)

II

You cannot

Each rule below is a prohibition already in force. Breach of any rule in this Part may attract a penalty of up to MUR 50,000 per breach (indexed annually on the CPI), imposed by the Syndic after advice of the Conseil Syndical (RdC §2.1.5). Objects left in common parts may be removed at your cost after formal notice (RdC §2.1.3.2(b)).

HR-C-01 Do not use your lot for anything other than its designated purpose, and never for a proscribed activity: political party headquarters, nightclub or discothèque, gambling, adult shop, snack bar or similar.
Source: RdC §2.1.2

HR-C-02 Do not run an industrial establishment, a place of worship or a school causing abnormal neighbourhood trouble, an animal-breeding construction, or any excavation whatsoever.
Source: RdC §2.1.2

HR-C-03 Do not modify your entry door, windows, exterior closures or railings — including repainting them — without prior authorisation of the General Meeting by special majority.
Source: RdC §2.1.2.3 · Art. 3.1.2.4.B

HR-C-04 Do not hang laundry or place any object on window sills, balconies or railings.
Source: RdC §2.1.2.3

HR-C-05 Do not display signage or advertising on the exterior of your lot.
Source: RdC §2.1.2.3

HR-C-06 Do not store dangerous, unhealthy or inflammable materials, and keep nothing on window ledges.
Source: RdC §2.1.2.6

HR-C-07 Do not use taps, conduits and common networks for anything other than their intended purpose.
Source: RdC §2.1.2.6

HR-C-08 Do not make abnormal noise, by day or by night, even inside your lot. Appliances that vibrate must be mounted on a device that prevents transmission of vibration.
Source: RdC §2.1.2.7

HR-C-09 Do not alter the original acoustic characteristics of a party wall facing the adjacent lot.
Source: RdC §2.1.2.7

HR-C-10 Do not hold a public sale or auction of furniture or other objects anywhere in the building.
Source: RdC §2.1.2.7

HR-C-11 Do not obstruct common parts, use them for personal storage, or park outside designated areas — even temporarily.
Source: RdC §2.1.3.2(a)

HR-C-12 Do not leave household waste or bulky items in common parts. Use the designated collection points only.
Source: RdC §2.1.3.2(c) · §2.1.3.4(a)

HR-C-13 Do not carry out any works on the roof.

Source: RdC §2.1.2.5

Exception — detachable antennas and solar panels with prior written authorisation: see HR-A-06.

HR-C-14 Do not install any additional letterbox in the common parts without authorisation of the General Meeting.

Source: RdC §2.1.3.4(b)

HR-C-15 Do not let any animal roam free within the grounds. Hunting dogs are not admitted at all.

Source: RdC §2.1.5

HR-C-16 Do not keep more than two dogs or cats per lot — and none without the Syndic's prior written accord (see HR-A-07).

Source: RdC §2.1.5

HR-C-17 Do not wash vehicles in the common drives or parking areas without the Syndic's express authorisation.

Source: RdC §2.1.5

HR-C-18 Do not play sports or outdoor games in the open spaces and gardens, except in areas designated for that purpose.

Source: RdC §2.1.5

III

You may, with authorisation first

Nothing in this Part is forbidden — but the law of the building asks you to ask first. Written authorisation from the Syndic is free of charge; acting without it can cost you the penalty in RdC §2.1.5 and the cost of putting things back as they were.

HR-A-01 Carry out interior works only after giving the Syndic 15 days' advance notice by registered letter — and only in the hours the Syndic prescribes. The Syndic may forbid works that would endanger the building or disturb neighbours.

Source: RdC §2.1.2.5

HR-A-02 Undertake any works touching the common parts or the exterior appearance only after authorisation of the General Meeting by special majority.

Source: RdC §2.1.2.5 · Art. 3.1.2.4.B

HR-A-03 Install air-conditioning units only with the Syndic's prior authorisation, at the designated positions, with condensate water collected and evacuated correctly — at your cost.

Source: RdC §2.1.2.3

HR-A-04 Fit exterior shutters only with the Syndic's written consent; the Syndic may impose the tint and form.

Source: RdC §2.1.2.3

HR-A-05 Display a professional plaque only with the Syndic's prior approval of the model.

Source: RdC §2.1.2.4

HR-A-06 Install detachable antennas or solar panels on the roof only with the Syndic's prior written accord, given after favourable advice of the Conseil Syndical.

Source: RdC §2.1.2.5

HR-A-07 Keep dogs or cats (maximum two per lot) only with the Syndic's prior written accord. Dogs must be formally obedience-trained and prevented from barking in the common parts. Repeated, uncontrolled barking may be brought before the Judge in référé.

Source: RdC §2.1.5

HR-A-08 Keep a kitchen garden only with the Syndic's approval.

Source: RdC §2.1.2

HR-A-09 Wash your vehicle in the common areas only with the Syndic's express authorisation (the Syndic need not give reasons for a refusal).

Source: RdC §2.1.5

HR-A-10 Display professional or commercial advertising only at the spots designated by the Syndic within the normal operation of the professional or commercial premises.

Source: RdC §2.1.3.3

HR-A-11 Place a provisional “For Sale” or “To Let” board only as a temporary écriteau announcing the sale or letting of your lot.

Source: RdC §2.1.3.3

HR-A-12 Book move-in / move-out with the Syndic in advance, including lift protection arrangements.
Source: RdC logistics provisions — source to be verified before issue

IV

You must

Compliance duties — each one already binding, most with a deadline or a document attached. The full list, with dates and submission points, is the Part Five checklist.

HR-M-01 Insure your lot at your own cost — the contents, your interior fit-out and embellishments, the recourse of neighbours for fire, explosion, electrical and water damage, and your personal liability as occupant — with a solvent insurance company. Keep your certificate on file with the Syndic; proof of cover and premium payment may be demanded at any time.

Source: RdC §4.2 (V)

HR-M-02 Maintain your lot — at least the parts visible from the exterior — in good order. If you neglect this, the Syndic may, after a General Meeting decision and a formal notice left without effect for two months, carry out the work at your cost.

Source: RdC §2.1.4 (3°)

HR-M-03 Respect the servitudes affecting the building, and support the straight or oblique views, balconies and projections established at the time of division.

Source: RdC §2.1.4 (1°)

HR-M-04 Observe all hygiene, town, police and traffic regulations, and in all things act as a reasonable head of household.

Source: RdC §2.1.4 (2°)

HR-M-05 Allow the Syndic and its mandataries access to your lot at all times to verify its condition, trace leaks or infiltrations, and check that major works do not endanger the building or the rights of other co-owners.

Source: RdC §2.1.2.8 (B)

HR-M-06 Allow the passage through your lot of cables, pipes and conduits serving common equipment or other lots, and give free access at all times to any company needing to maintain, repair or read meters located in shafts, traps and inspection points within your lot.

Source: RdC §2.1.2.8 (C)

HR-M-07 Going away for a prolonged period? Deposit the keys of your lot with the Syndic, the guardian of the building, or a person resident in the town and known to the Syndic, authorised to enter during your absence. If you do not, the Syndic may, in an emergency (fire, water or gas leak), have the door opened by a locksmith, after notifying you as soon as possible.

Source: RdC §2.1.2.8 (D)

HR-M-08 Report any breach of good order, tranquillity or these rules to the Syndic in writing. Verbal or anonymous complaints are not receivable — the written record is what allows the matter to be raised at the General Meeting.

Source: RdC §2.1.4 (4°)

HR-M-09 Keep the open spaces, gardens, accessways and circulation areas in a state of rigorous cleanliness.

Source: RdC §2.1.5

HR-M-10 Answer a formal notice within its deadline. The enforcement ladder is always the same: informal notice, formal registered notice, remediation at your personal account — and, for breaches of Part Two, the penalty under RdC §2.1.5. Charges are never spread to other co-owners.

Source: RdC §2.1.3.2(b) · §2.1.4 (3°) · §2.1.5

V

The whole booklet on one page

Every duty, every deadline, every submission point. The Syndic maintains and ticks this list — a tick means the document is on file at the Syndic's office.

Ref	What you must do	When	Where	Done ✓
HR-M-01	Insurance certificate for your lot (cover + premium receipt)	Before move-in; at each renewal	Syndic office	
HR-A-01	Interior works — 15 days' advance notice by registered letter	15 days before works start	Syndic office	
HR-A-02	Works touching common parts / exterior — GM special majority	Before works start	via Syndic	
HR-A-03	Air-conditioning — authorisation request	Before installation	Syndic office	
HR-A-05	Professional plaque — model for approval	Before installation	Syndic office	
HR-A-06	Roof antenna / solar panel — written accord request	Before installation	Syndic office	
HR-A-07	Pet accord request (max 2 dogs/cats)	Before the animal arrives	Syndic office	
HR-A-12	Move-in / move-out booking (lift protection)	≥ 3 working days before the day	Syndic office	
HR-M-07	Keys deposit for prolonged absence	Before departure	Syndic / guardian	
—	Tenant / occupant details for your lot	At each change of occupant	Syndic office	

Items marked "—" are administrative requirements of the Syndic's management files; the numbered items rest on the RdC references shown beside each rule in Parts Two to Four.

KEEP THIS PAGE

Contacts and document control

Syndic for Pentagon 1

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Authorisations and formal notices

All authorisation requests and formal notices must be lodged at the Syndic's office in writing. Formal notices that the law requires by registered letter (e.g. works notification, HR-A-01) are valid only by that channel.

Document control

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